

TENTATIVE RULINGS

Jose Andrade, et al.
v.
Hacienda Vargas, Inc.
(And Related-Cross Action)

24CV003266

Petitions to Compromise the Disputed Claims of:

[Delila Tapia;](#)
[Xavier Tapia;](#) and
[Liah Andrade-Viurquez](#)

Hearing Date: September 4, 2026 (continued from August 14, 2026)

NOTE RE TENTATIVE RULINGS

Each of these tentative rulings becomes the court's order, and no hearing shall be held unless one of the parties contests it by following Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9. Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND EACH TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE RELATED HEARING VACATED.** You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.

Petition to Compromise the Disputed Claims of Delila Tapia

After reviewing the amended and unopposed minor's compromise petition ("Petition") of Maria Guadalupe Benabides, as the guardian ad litem of 15-year-old Claimant Delila Tapia ("Claimant"), the Court hereby **GRANTS** the Petition.

The Court will sign the proposed order approving Claimant's net settlement proceeds, totaling \$186,582.83, and authorizing the investment of those funds into a single-premium deferred annuity, subject to the conditions outlined in Attachments 8b.2 and 13 of the Order.

The matter is set for hearing on **December 4, 2026**, at 8:30 a.m. in Department 14 to show proof that Claimant's funds were invested in a single-premium deferred annuity. Unless the Court orders otherwise, no appearance is required if proof is filed with the Court before then.

Petition to Compromise the Disputed Claims of Xavier Tapia

After reviewing the amended and unopposed minor's compromise petition ("Petition") of Maria Guadalupe Benabides, as the guardian ad litem of 16-year-old Claimant Xavier Tapia ("Claimant"), the Court hereby **GRANTS** the Petition.

The Court will sign the proposed order approving Claimant's net settlement proceeds, totaling \$186,582.83, and authorizing the investment of those funds into a single-premium deferred annuity, subject to the conditions outlined in Attachments 8b.2 and 13 of the Order.

The matter is set for hearing on **December 4, 2026**, at 8:30 a.m. in Department 14 to show proof that Claimant's funds were invested in a single-premium deferred annuity. Unless the Court orders otherwise, no appearance is required if proof is filed with the Court before then.

Petition to Compromise the Disputed Claims of Liah Andrade-Viurquez

After reviewing the amended and unopposed minor's compromise petition ("Petition") of Maria Guadalupe Benabides, as the guardian ad litem of 11-year-old Claimant Liah Andrade-Viurquez ("Claimant"), the Court hereby **GRANTS** the Petition.

The Court will sign the proposed order approving Claimant's net settlement proceeds, totaling \$186,582.83, and authorizing the investment of those funds into a single-premium deferred annuity, subject to the conditions outlined in Attachments 8b.2 and 13 of the Order.

The matter is set for hearing on **December 4, 2026**, at 8:30 a.m. in Department 14 to show proof that Claimant's funds were invested in a single-premium deferred annuity. Unless the Court orders otherwise, no appearance is required if proof is filed with the Court before then.